IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No. 130

C.P.(CAA)/40(AHM)2022 in
C.A.(CAA)/13(AHM)2022

Order under Section 230-232 of the Companies Act

IN THE MATTER OF:

Gajanand Infracon Pvt Ltd
HN Safal Aviation Pvt Ltd **.....Applicants**

Order delivered on: 02/01/2023

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for the pronouncement of the order. The order is pronounced I open Court vide separate sheet.

-SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-

DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
COURT-1

CP(CAA)/40(AHM)2022 in
C.A(CAA)/13(AHM)2022

[A Petition under section 230-232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013]

In the matter of :

M/s. Gajanand Infracon Private Limited

[CIN: U45201GJ2010PTC060759]
A Company incorporated under the provisions
of the Companies Act, 1956
Having its registered office at:
G-908, 9th Floor, Titanium City Centre,
100 feet Anand Nagar Road,
Ahmedabad – 380015, Gujarat.

....Applicant Amalgamating /Transferor Company

M/s. HN Safal Aviation Private Limited

[CIN: U62100GJ2015PTC085022]

A Company incorporated under the provisions
of Companies Act, 2013
Having its registered office at:
1005, 10th Floor, Safal Profitaire,
Corporate Road Opp Auda Garden,
Prahladnagar Ahmedabad-380015

....Applicant Amalgamated /Transferee Company

Order pronounced on: 02.01.2023

Coram: DR. MADAN B. GOSAVI, MEMBER (JUDICIAL)
KAUSHALENDRA KUMAR SINGH, MEMBER (TECHNICAL)

Appearance:

For the Applicants : Ms. Dharmistha N Raval, Ld. Advocate along with Mr. Yuvraj Thakore, Ld. Advocate

O R D E R

1. The instant Company Petition is jointly filed by M/s. Gajanand Infracon Private Limited ("GIPL")- the Transferor Company and M/s. HN Safal Aviation Private Limited ("HSAPL") – the Transferee Company under Sections 230-232 and other relevant provisions of the Companies Act, 2013 seeking approval of the Composite Scheme of Amalgamation between M/s. Gajanand Infracon Private Limited and M/s. HN Safal Aviation Private Limited (hereinafter jointly referred to as "the Petitioner Companies").

2. Since the registered offices of the Petitioner Companies are situated in the state of Gujarat, this Tribunal has jurisdiction to adjudicate the instant Company Petition.

3. Learned Counsel for the Petitioner Companies appeared and made the averments which are as under:

I. A joint application, bearing no. CA(CAA)/13(AHM)2022 was filed by the Petitioner Companies seeking dispensation of the meetings of Equity Shareholders, Secured Creditors, and Unsecured Creditors of both the Applicant Companies and Debenture Holders in respect of the Transferee Company and further prayed for appropriate direction for holding and convening the meetings of Preference Shareholders in respect of Transferor Company for the proposed Scheme of Amalgamation.

II. This Tribunal vide order dated 16.03.2022 in CA (CAA)/13(AHM)2022, dispensed with the meetings of the Equity Shareholders, Unsecured Creditors of both the Applicant Companies, Secured Creditors in respect of the Transferor Company, and Debenture Holders in respect of the Transferee Company. There were no Secured Creditors in the Transferee Company, hence, the meeting of the same was not required to be convened. Further, this Tribunal directed to convene the meeting of the Preference Shareholders of the Transferor Company on 05.05.2022 after serving upon them notice of

the meeting at least one month prior to the meeting along with a copy of the statement required to be furnished pursuant to section 102 read with sections 230 to 232 and Rule 6 of Companies (CAA) Rules, 2016 and make an advertisement about the convening the said meeting, indicating the day, date, place, and time in English daily, **"Free Press"** in Gujarati, Ahmedabad Edition and a Gujarati Translation thereof in **"Lok Mitra"**, Ahmedabad Edition. Mr. Vasant Patel (CA) was appointed as Chairman and Mr. Shambhubhai J. Bhikadia (CA) was appointed as Scrutinizer for the aforesaid meetings.

III. This Tribunal had further directed the Petitioner Companies to serve notice of meeting in compliance with the provisions of section 230 (5) of the Companies Act, 2013 and Rule 8 of the Companies (CAA) Rules, 2016 in Form CAA-3 along with disclosures mentioned under Rule 6 to (i) the Central Government through the Regional Director ("RD"), North Western Region, (ii) the Registrar of Companies, Gujarat ("RoC"), (iii) the Income Tax Authorities concerned, and (iv) the Official Liquidator ("OL") (in respect of Transferor Company) stating that representations, if any, to be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection to make on the proposed Scheme.

IV. In compliance with the directions dated 16.03.2022 of this Tribunal in CA(CAA)/13(AHM)2022, the Chairman served the notice to the Preference Shareholders of the Transferor Company and Statutory Authorities viz. RD, RoC, OL and the concerned Income Tax Department, and also published the notice of the meeting of Preference Shareholders of the Transferor Compay in **"Free Press"** in English and in **"Lok Mitra"** in Gujarati both in Ahmedabad Edition and filed the affidavit on 26.04.2022 with respect to the proof of notice as well as publication.

V. The Chairman also filed an affidavit dated 10.05.2022 containing the Chairman's report and the scrutinizer's report. As per the Chairman's report, the representative of 27 Preference Shareholders, having 2,15,60,173 Preference Shares representing 79.78% of the total number of shares, attended the meeting out of which 19 Preference Shareholders appeared in person, 2 (two) through proxy, and 6 (six) appeared through their representative, and all unanimously passed a resolution approving the Scheme of Amalgamation. The Scrutinizer-Mr. Shambhubhai J. Bhikadia (CA) in its report has stated that all Preference Shareholders voted in favour of the proposed Scheme.

VI. The Petitioner Companies have jointly filed the present petition bearing no. CP (CAA) 40 of 2022 before this Tribunal seeking sanction of the Scheme. This Tribunal vide order dated 11.07.2022 admitted the petition and directed for issuance of notice of hearing to be advertised in the English daily **"Free Press"**, and Gujarati translation thereof in **"Lok Mitra"** both in Ahmedabad Edition not less than ten days before the date fixed of hearing, calling for their objections, if any, on or before the date of hearing. This Tribunal also directed to issue notice to the RD, RoC, OL, and Income Tax Department informing the date of the hearing.

VII. The Petitioner Companies, in compliance with the order dated 11.07.2022 of this Tribunal, has published the notice of hearing in **"Free Press"** in English, and **"Lok Mitra"** in Gujarati, both in Ahmedabad Edition and also served the notices to the Statutory Authorities viz. RD, RoC, OL and the concerned Income Tax Department. The Petitioner Companies have filed an affidavit on 30.07.2022 for the proof of service of notice to the Statutory Authorities and publication of hearing.

VIII. No inspection or investigation has been instituted or is pending against any of the petitioner companies under the provisions of the

Companies Act, 2013. It was also stated that if there is any deficiency found, or violation committed of any enactment, statutory rules or regulations, the sanction granted by the Tribunal to the S cheme will not come in the way of action being taken in accordance with the law, against the concerned persons, directors, and officials of the petitioners.

IX. As per the knowledge of the Petitioner Companies no winding-up proceeding has been filed or is pending against the Petitioner Companies under the Companies Act, 2013 or the corresponding provisions of the Companies Act, 1956.

X. The Petitioner Companies have already placed on record a copy of the Valuation Report, issued by AAA Valuation Professional LLP, a registered valuer along with the detailed working and the basis of the valuation.

XI. In compliance with the proviso of clause (e) of sub-section (7) of section 230 of the Companies Act, 2013, a certificate from the Statutory Auditors of the Petitioner Companies dated 21.01.2022, is placed on record confirming that the accounting treatment as proposed under the Scheme is in conformity with the applicable Accounting Standards as prescribed under section 133 of the Companies Act, 2013.

4. In response to the notice received from the Petitioner Companies, the RD and RoC have filed their common report on 03.08.2022 and made some observations which are as under:

I. In para 2(C), the RD observed that the authorized capital of the Transferor Company amounting to Rs. 65,99,70,000/- will be added in the authorized share capital of the Transferee Company and the consolidated authorized share capital of the Transferee Company will be arrived to Rs. 77,24,70,000/-. Hence, the RD has prayed from this Tribunal to direct the Petitioner Companies to undertake to comply

with Section 232(3)(i) of the Companies Act, 2013, and pay fees accordingly.

In response to this observation, the Petitioner Companies in their clarificatory affidavit undertake to comply with section 232(3)(i) of the Companies Act, 2013 and pay such legal fees, if applicable.

II. The RoC in its report in para 14(3), has observed that the Scheme provides provision of change/addition/alteration in the main objects under clause 3A on the Memorandum of Association of the Transferee Company. Hence, the Transferee Company shall require to comply with the provision of section 13 of the Companies Act, 2013 and the rule made thereunder and shall also file the relevant e-Form i.e., MGT-14 along with the principal approval of concerned regulators.

III. The RoC at para 14(4), has observed that Petitioner Companies is required to pay the necessary Stamp Duty on the transfer of property/assets to the respective authorities before implementation of the Scheme.

In response to the above observations, the Petitioner Companies in their clarificatory affidavit have stated that under the single window principle, no separate procedure is required to be followed. However, the Petitioner Companies undertake to file the relevant MGT-14 Form with the MCA.

5. In response to the notice received from the Petitioner Companies, the Official Liquidator (OL) has filed its representation on 18.07.2022 wherein the following observations have been made by the OL:

I. The OL, at para 23 has observed that on perusal of the balance sheet of the Transferor Company ending as on 31.03.2021, it appears that the Transferor Company is having a security premium to the tune of Rs. 5111.68 Lakhs. However, no such clause is made

in the proposed Scheme with respect to the security premium. Hence, the OL has prayed from this Tribunal for direction to the Petitioner Companies to place on record the status of the premium available with the Transferor Company, post-merger.

In response to this observation, the Petitioner Companies in their clarificatory affidavit have stated that the security premium of the Transferor Company will become the security premium of the Transferee Company on and after the Scheme of Amalgamation is approved by this Tribunal and is made effective.

II. The OL, at paras 25 and 26 has stated that this Tribunal may direct the Transferor Company to preserve its Book of Accounts, Papers and records and shall not be disposed of without prior permission of the Central Government as per the provision of section 239 of the Companies Act, 2013. The OL further prayed from this tribunal to direct the Transferor Company to ensure statutory compliance of all applicable laws on sanctioning of the present Scheme.

In response to this observation, the Transferor Company undertakes to preserve its Books of Accounts, papers, and records and it shall not be disposed of prior approval of the Central Government as per section 239 of the Companies Act, 2013. The Transferor Company further undertakes that it shall ensure statutory compliance of all applicable laws on the sanction of the Scheme by this Tribunal.

6. In response to the notice received from the Petitioner Companies, the Income Tax Department filed its observation on 19.10.2022 wherein the Department has stated that as per the record and detail available on ITBA Portal of the Income Tax Department, no proceeding is pending with respect to the Transferor Company. However, an amount of Rs. 4,03,900/- is pending for the A.Y. 2018-19.

In response to the above observation, the Petitioner Companies in their clarificatory affidavit have stated that the Transferor Company has filed a rectification application under section 154 of the Income Tax Act, 1961 against the Assessment Order passed under section 143(3) r.w. 144B of the Income Tax Act, 1961 which is still pending. However, the Petitioner Companies have undertaken to make the payment of said Income Tax Dues in accordance with the law on the adjudication of the amount due and payable by the Transferor Company.

7. No representations have been received from any other statutory authorities.

8. We heard learned counsel Ms. Dharmishtha N. Raval for the Petitioner Companies and perused the material on record. On the basis of the above facts and submissions made by the learned counsel and by considering the entire facts and circumstances of the aforesaid Company Petition, it appears that the requirements of the provisions of sections 230 to 232 are satisfied by the Petitioner Companies. The Scheme envisaging amalgamation of M/s. Gajanand Infracon Private Limited with M/s. HN Safal Aviation Private Limited is hereby allowed. It is declared that the said sanctioned scheme shall be binding on the Petitioner Companies and their shareholders, creditors, and all concerned under the Scheme.

9. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

10. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes, including Income Tax, GST etc., or any other charges, if any, and payment in accordance with the law in respect of any

permission/compliance with any other requirement which may be specifically required under any law.

11. The Scheme is allowed with the following directions:-

O R D E R

i. The Scheme of Amalgamation as annexed herewith as **Annexure-A** is hereby sanctioned and is declared that the same shall be binding on the Petitioner Company and its shareholders and creditors and all concerned under the Scheme;

ii. The Transferor Company shall be dissolved without winding up and the Board of Directors and any committees thereof of the Petitioner Company shall without any further act, instrument or deed shall stand dissolved;

iii. All the property annexed herewith as **"Annexure B"**, right and powers of the Transferor Company specified in the schedule hereto and all the other property, rights and powers of the Transferor Company be transferred without further act or deed to the Transferee Company in accordance with the Scheme and accordingly the same shall pursuant to Section 232 of the Act, shall stand transferred to and vest in the Transferee Company in accordance with the Scheme for all the estate and interest of the Transferor Company therein but subject nevertheless to all charges now affecting the same.

iv. All licenses, permissions, permits, quotes, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, other benefits or privileges relating to the Transferor Company stand transferred to and vested in the Transferee Company in accordance with the Scheme, without any further act or deed and be in full force and effect in favour of the Transferee Company, as if the same were

originally given to, issued to or executed in favour of the Transferee Company. The Transferee Company shall be bound by the terms thereof, the obligations and duties there under, and the rights and benefits under the same shall be available to the Transferee Company.

v. The Transferee Company shall without further application and allot to the members of the Transferor Company, whose names are registered in the Register of Members of the Transferor Company, as on the record date, the shares in the Transferee Company to which they are entitled in the following ratio:

a. 1 equity share of face value of Rs. 10 (Rupees ten only) each credited as fully paid-up share of HSAPL (Transferee Company) to the equity shareholders of the GIPL (Transferor Company) for every 1 (one) equity share of the face value of Rs. 10 (Rupee ten only) each fully paid up and held by such shareholders in Transferor Company whose names are recorded in the Register of Members of Transferor Company as on record date.

b. 1 Optionally Convertible Preference Share ("OCPS") of face value of Rs. 10 (Rupees ten only) each credited as fully paid up shares of HSAPL (Transferee Company) to the preference shareholders of GIPL (Transferor Company) for every 1 (one) Optionally Convertible Preference Share (OCPS) of the face value of Rs. 10 (Rupee ten only) each fully paid up and held by such shareholders in Transferor Company whose names are recorded in the Register of Members of Transferor Company as on record date at the terms not less favorable than the terms in Transferor Company. In absence of conversion of OCPS into equity shares within 3 (three) months of allotment, such shares will become Redeemable Preference Shares (RPS) with a right to carry additional

dividend at 7% over the dividend declared on voting equity shares.

vi. All proceedings, if any, now pending or against the Transferor Company be continued by or against the Transferee Company. All taxes paid or payable by the Transferor Company and all existing and future incentives, un-availed credits and exemptions, the benefit of carried forward losses, and other statutory benefits, to which the Transferor Company is entitled to, shall be available to and vest in the Transferee Company;

vii. All contracts, agreements, undertakings, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Transferor Company which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company in accordance with the Scheme and be in full force and effect in favour of the Transferee Company as the case may be and may be enforced by or against it as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obliged thereto;

viii. All workers/employees of the Transferor Company shall be deemed to become the workers /employees of the Transferee Company with effect from the Appointed Date, and shall stand absorbed in the Transferee Company in accordance with the Scheme without any interruption of service and on term and conditions no less favourable than those on which they are engaged by the Transferor Company, as on the Effective Date;

ix. The Petitioner Companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on

such certified copy being so delivered, the entire Undertaking of the Transferor Company shall stand transferred to the Transferee Company and the Registrar of Companies shall place all documents relating to the Petitioner Company to the file kept by him in relation to the Transferee Company and the files relating to the said two companies shall be treated accordingly;

x. Upon Scheme being effective, the Authorised Capital of the Transferor Company shall be consolidated with the Authorised Capital of the Transferee Company as envisaged under the Scheme;

xi. All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately;

xii. The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the Transferor Company attached as **Annexure-B** with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the order;

xiii. The Petitioner Companies are further directed to file a copy of this order along with a copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to a physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xiv. The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/- in respect of all the Transferor Company. The said fees shall be to the Regional Director, NWR by the Transferee Company;

xv. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of the Transferor Company. The said fees to the Official Liquidator shall be paid by the Transferee Company;

xvi. Any person aggrieved shall be at liberty to apply to this Tribunal in the above matter for any direction that may be necessary.

12. The Company Petition CP (CAA)/40(AHM)2022 in CA (CAA)/13(AHM) 2022 is disposed of.

-SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-

DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

Rajeev-Steno/Ramashish-LRA

ANNEXURE- "A"
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SCHEME OF ARRANGEMENT IN THE NATURE OF AMALGAMATION

BETWEEN

GAJANAND INFRACON PRIVATE LIMITED

(AMALGAMATING COMPANY)

AND

HN SAFAL AVIATION PRIVATE LIMITED

(AMALGAMATED COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

(UNDER SECTIONS 230 to 232 OF THE COMPANIES ACT, 2013 AND RULES MADE THEREUNDER)

GAJANAND INFRACON PVT. LTD.
AUTHORISED SIGNATORY/DIRECTOR

HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

PREAMBLE

This scheme of arrangement (hereinafter referred to as the **'Scheme'**) provides for the amalgamation of **GAJANAND INFRACON PRIVATE LIMITED ("GIPL" or "Amalgamating Company")** with **HN SAFAL AVIATION PRIVATE LIMITED ("HSAPL" or "Amalgamated Company")**, pursuant to the provisions of Sections 230 to 232, and other applicable provisions of the Companies Act, 2013 read with the relevant Rules of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, including any statutory modification(s), amendment(s) or re-enactment(s) thereof for the time being in force..

Under this scheme of arrangement, all the Assets & Liabilities of GIPL will be taken over by HSAPL. The amalgamation will result into elimination of investment layer in the shareholding pattern, more efficient utilization of capital, administrative and operational rationalization and promote organizational efficiencies. Cost savings are expected to flow from more focused operational efforts, rationalization, standardization and simplification of business processes, and the elimination of duplication, and rationalization of administrative expenses. Accordingly, it would be in the best interests of the shareholders, creditors, employees and all other stakeholders of the Amalgamating Company & Amalgamated Company. In view of the abovementioned reasons, it is considered desirable and expedient to implement the proposed scheme of arrangement.

The Scheme is divided into the following three parts:

Part I	:	Introduction, Definitions and Share Capital
Part II	:	Amalgamation and Vesting
Part III	:	Miscellaneous provisions and Conditionality of the Scheme

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

GAJANAND INFRACON PVT. LTD.
AUTHORISED SIGNATORY/DIRECTOR

GAJANAND INFRACON PVT. LTD.
AUTHORISED SIGNATORY/DIRECTOR

HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

PART I

INTRODUCTION, DEFINITIONS AND SHARE CAPITAL

1. INTRODUCTION

1.1 GAJANAND INFRACON PRIVATE LIMITED (Corporate Identification Number U45201GJ2010PTC060759) was originally incorporated as on 17/05/2010 under the provisions of the Companies Act, 1956 its registered office is situated at G-908, 9th Floor, Titanium City Centre 100 feet Anandnagar Road, Ahmedabad GJ 380015 IN.

The main objects for which GAJANAND INFRACON PRIVATE LIMITED was incorporated, include but is not limited to the following:

a. To carry on the business to construct, build, alter, acquire, convert, improve, design, erect, establish, equip, develop, dismantle, pull down, turn to account, furnish, level, decorate, fabricate, install, finish, repair, maintain, search, survey, examine, taste, inspect, locate, modify, owe, operate, protect, promote, provide, participate, reconstruct, grout, dig, excavate, pour, renovate, remodel, rebuild, undertake, contribute, assist, and to act as civil engineer, architectural engineer, interior decorator, consultant, advisor, agent, broker, supervisor, administrate, developer, contractor, subcontractor, turnkey contractor, and manager of all types of constructions and developmental work in all its branches such as factories, houses, flats, apartments, housing towers, offices, shops, buildings, sheds, go-downs, structures, drainage and sewage works, land development, water distribution and filtration systems, aqueducts, stadium, hydraulic units, sanitary work, earth works, market yard, power supply works, power stations, hotels, holiday resorts, shopping cum residential complex, hospitals, multistory, colonies, shopping complexes, industrial park, estates, super market, mall, housing projects, amusement parks, farm houses, club house, and other similar works.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

GAJANAND INFRACON PVT. LTD.
AUTHORISED SIGNATORY/DIRECTOR

GAJANAND INFRACON PVT. LTD.
AUTHORISED SIGNATORY/DIRECTOR

HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

1.2 HN SAFAL AVIATION PRIVATE LIMITED (Corporate Identification Number U62100GJ2015PTC085022) was originally incorporated as on 06/11/2015 under the provisions of the Companies Act, 2013. Its registered office is situated at 1005, 10th Floor, Safal Profitaire, Corporate Road Opp Auda Garden, Prahladnagar Ahmedabad-380015.

The main objects for which HN Safal Aviation Private Limited was incorporated, include but is not limited to the following:

(i) To carry on the business of purchasing, leasing, on dry lease/wet lease/lease purchase and/or hiring/chartering or otherwise acquiring, owning, running, organizing, employing, conducting, contracting, developing, handling, maintaining, and/or to work, manage, control, lease, let on hire, charter, consult on the purchase, sale, lease and maintaining and/or to work, manage, control, lease, let on hire, charter, consult on the purchase, sale, lease, and management thereof and/or demise all forms of aerial conveyance, to provide repair, servicing, engine, overhauling, on-line maintenance, facilities and to create necessary infrastructure such as hangers, aviation offices, VIP rooms/lounges, storage space, technical libraries, briefing room and maintenance bays, to provide such services to all types of elite aircraft, airplane, airliner, gas-filled balloon, including wide bodies, turbojets, helicopters, air buses, seaplanes, flying boats, hover crafts, turbo propellers plane, jet, glider, jumbo jet or any other kind of Aircraft, for any business, commercial or industrial purpose/s of transporting or carrying passengers, baggage, mail and freight, and merchandising of all and every kind and description whether as principals, agents or otherwise, on national and international routes, operate revenue charter flights for a company, operate, market, manage, maintain and acquire or invest in entities, engaged in residential, commercial, tourism and transport of all descriptions such as hotels, restaurants, convention and exhibition facilities, commercial complexes, information technology parks, special economic zone, defense offsets in aviation field, logistics & redistribution centers, aircraft maintenance centers, aviation

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

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HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

training academies, booking offices, and warehouses, mass rapid transit systems, air-linkages and road linkages, operate air support services, provide services of corporate/VIP flights, tourism flights, code sharing with scheduled airlines, Scheduled Commuter services for domestic flights carry on ballooning, parachuting, gliding, hang gliding, aerial photography, either alone or jointly with any other companies central/State/Local Bodies/Statutory Entities or persons or any organization of any nature or form whether in India or abroad in the manner beneficial to the interests of the company and includes Scheduled operations of aircraft/s subject to DGCA clearance.

HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

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NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

2. DEFINITIONS

In this Scheme, unless inconsistent with the subject or context, the following expressions shall have the following meanings:

2.1 "Act" or "The Act" means the Companies Act, 2013 or any statutory modification or reenactment thereof;

2.2 "Amalgamated Company" means HN SAFAL AVIATION PRIVATE LIMITED (Corporate Identification Number U62100GJ2015PTC085022), a Company incorporated under the Companies Act, 2013, having its registered office at 1005, 10th Floor, Safal Profitaire, Corporate Road, Opp. Auda Garden, Prahladnagar Ahmedabad-380015

2.3 "Amalgamating Company" means GAJANAND INFRACON PRIVATE LIMITED (Corporate Identification Number U45201GJ2010PTC060759), a Company incorporated under the Companies Act, 1956, having its registered office at G-908, 9th Floor, Titanium City Centre 100 feet Anandnagar Road, Ahmedabad Ahmedabad GJ 380015 IN.

2.4 "Applicable Law(s)" means (a) all the applicable statutes, notification, enactments, act of legislature, listing agreement, bye-laws, rules, regulations, guidelines, rule, common law, policy, code, directives, ordinance, orders or other instructions having force of law enacted or issued by any Appropriate Authority including any statutory modifications or re-enactment thereof for the time being in force (b) administrative interpretations, writs, injunctions, directions, directives, judgments, arbitral awards, decree, orders, or Governmental approvals of, or agreement with any relevant authority, received from time to time and as may be in force during the pendency of the approval of the Scheme and at the time of this Scheme becoming effective;

2.5 "Appointed Date" means 1st April, 2021 or such other date as the Tribunal may direct.

HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

GAJANAND INFRACON PVT. LTD.
AUTHORISED SIGNATORY/DIRECTOR

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

GAJANAND INFRACON PVT. LTD.
AUTHORISED SIGNATORY/DIRECTOR

HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

2.6 "Board of Directors" or "Board" means board of directors of the Amalgamating Company and/or Amalgamated Company, as the case may be, and shall, unless it is repugnant to the context, includes a committee of directors or any person authorized by the board of directors or such committee of directors for purposes of matters pertaining to this Scheme.

2.7 "Scheme", "Scheme of Amalgamation", "the Scheme" or "this Scheme", means the present Scheme of amalgamation in its present form or with any modifications or amendments approved, imposed or directed by the Tribunal.

2.8 "Companies" means the Amalgamating Company and Amalgamated Company shall jointly be referred to as the Companies.

2.9 "Memorandum or Memorandum of Association or MOA" means Memorandum of Association of Amalgamating Company and Amalgamated Company.

2.10 "National Company Law Tribunal" or "NCLT" means the National Company Law Tribunal, Ahmedabad Bench.

2.11 "Effective Date" means the date on which certified copies of the Order passed by the Tribunal sanctioning the Scheme, is filed with the Registrar of Companies, Gujarat, at Ahmedabad.

Reference in the Scheme to the date of "Coming into effect of this Scheme" or "Upon the Scheme being effective" shall mean the Effective Date.

2.12 "Record Date" means the date to be fixed by the Board of Directors of the Companies for the purpose of determining the members of the Companies to whom shares will be issued and allotted pursuant to the Scheme and.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

HN SAFAL AVIATION PRIVATE LIMITED
AUTHORISED SIGNATORY/DIRECTOR

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2.13 "Tribunal" shall mean the National Company Law Tribunal, Ahmedabad Bench or any other relevant bench of the National Company Law Tribunal, constituted under Section 408 read with Sections 419 of the Act or the National Company Law Appellate Tribunal or any other competent Court(s), judicial or quasi – judicial authority, having appropriate jurisdiction and power to sanction the Scheme.

2.14 'Undertaking' shall mean and include all the assets, rights and properties (hereinafter referred to as "the said Assets") and all the debts, liabilities, duties and obligations (hereinafter referred to as "the said Liabilities") of the Amalgamating Company as on the Appointed Date. Without prejudice to the generality of above, the undertaking of the Amalgamating Company shall include but is not limited to:

(i) All immovable properties i.e. land together with the buildings and structures standing thereon (whether freehold, leasehold, leave and licensed, right of way, tenancies or otherwise) and all documents (including panchnamas, declarations, receipts) of title, rights and easements in relation thereto and all rights, covenants, continuing rights, title and interest in connection with the said immovable properties;

(ii) all assets, as are movable in nature, whether present or future or contingent, tangible or intangible, in possession or reversion, corporeal or incorporeal (including plant and machinery, furniture, fixtures, office equipments, communication facilities, installations, vehicles), actionable claims, earnest monies and sundry debtors, financial assets, outstanding loans and advances, recoverable in cash or in kind or for value to be received, provisions, receivables, funds, cash and bank balances and deposits including accrued interest thereto with Government, semi-Government, local and other authorities and bodies, banks, customers and other persons, the benefits of any bank guarantees, performance guarantees;

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(iii) all the investments, being the investments in subsidiaries Companies, joint venture Companies, associate Companies, Partnership firms or investments of any other nature.

(iv) all permits, licenses, permissions including municipal permissions, rights of way, approvals, clearances, consents, benefits, registrations, rights, entitlements, credits, certificates, awards, sanctions, allotments, quotas, no objection certificates, exemptions, concessions, liberties and advantages (including those granted/issued/given by any Governmental, statutory or regulatory or local or administrative bodies for the purpose of carrying on the business of the Amalgamating Company or in connection therewith) including those relating to the privileges, powers, facilities of every kind and description of whatsoever nature and the benefits thereto that pertain exclusively to the Amalgamating Company.

(v) all contracts, agreements, service orders, operation and maintenance contracts, memoranda of understanding, memoranda of undertakings, memoranda of agreements, memoranda of agreed points, minutes of meetings, bids, tenders, expression of interest, letter of intent, hire and purchase arrangements, lease/license agreements, tenancy rights, agreements/panchnamas for right of way, equipment purchase agreements, agreement with customers, purchase and other agreements with the supplier/manufacturer of goods/service providers, other arrangements, undertakings, deeds, bonds, schemes, concession agreements, insurance covers and claims, clearances and other instruments of whatsoever nature and description, whether written, oral or otherwise and all rights, title, interests, claims and benefits there under

(vi) all applications (including hardware, software, licenses, source codes, para-meterisation and scripts), registrations, goodwill, licenses, trade names, trademarks, service marks, copy rights, patents, domain names, designs, trade

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secrets, research and studies, technical knowhow, confidential information and all such rights of whatsoever description and nature there off.

(vii) all rights to use and avail telephones, telexes, facsimile, email, internet, leased line connections and installations, utilities, electricity and other services, reserves, provisions, funds, benefits of assets or properties or other interests held in trusts, registrations, contracts, engagements, arrangements of all kind, privileges and all other rights, easements, liberties and advantages of whatsoever nature and wheresoever situated belonging to or in the ownership, power or possession and in control of or vested in or granted in favour of or enjoyed by the Amalgamating Company or in connection with or relating to the Amalgamating Company and all other interests of whatsoever nature belonging to or in the ownership, power, possession or control of or vested in or granted in favour of or held for the benefit of or enjoyed by the Amalgamating Company;

(viii) all books, records, files, papers, engineering and process information, software licenses (whether proprietary or otherwise), test reports, computer programmes, drawings, manuals, data, databases including databases for procurement, commercial and management, catalogues, quotations, sales and advertising materials, product registrations, dossiers, product master cards, lists of present and former customers and suppliers including service providers, other customer information, customer credit information, customer/supplier pricing information, and all other books and records, whether in physical or electronic form, of the Amalgamating Company;

(ix) all debts (whether secured or unsecured), borrowings including loans and borrowings from banks/financial institutions, obligations, duties and liabilities, including the contingent liabilities of the Amalgamating Company;

(x) all legal or other proceedings of whatsoever nature of the Amalgamating Company.

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All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning as prescribed to them under the Companies Act, 1956/2013, Income Tax Act, 1961 and any other Applicable Law.

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3. SHARE CAPITAL

3.1 The Share Capital of the Amalgamating Company as on 31/03/2021 is, as under:

Authorized Share Capital	Amount (INR)
3,59,41,000 equity shares of Rs. 10/- each	35,94,10,000
3,00,56,000 Preference Shares of Rs. 10/- each	30,05,60,000
Total	65,99,70,000
Issued, Subscribed and Paid up Share Capital	
20,10,000 equity shares of Rs. 10/- each	2,01,00,000
2,70,29,945 0.01% Optionally Convertible Non-Cumulative Preference Shares of Rs. 10/- each fully paid-up	27,02,99,450
Total	29,03,99,450

The authorized, issued, subscribed and paid-up share capital of the Amalgamating Company is the same as on the date of board meeting sanctioning the Scheme.

3.2 The Share Capital of the Amalgamated Company as on 31/03/2021 is, as under:

Authorized Share Capital	Amount (INR)
1,12,50,000 equity Shares of Rs. 10/- each	11,25,00,000
Total	11,25,00,000
Issued, Subscribed and Paid up Share Capital	
1,12,50,000 equity Shares of Rs. 10/- each	11,25,00,000
Total	11,25,00,000

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The authorized, issued, subscribed and paid-up share capital of the Amalgamated Company, is the same as on the date of board meeting sanctioning the Scheme. The Amalgamating Company holds 100% in share capital of Amalgamated Company.

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PART II

4. AMALGAMATION AND VESTING

Upon the Scheme becoming effective and with effect from the opening of business as on the Appointed Date, and subject to the provisions of this Scheme, the entire business and undertaking of the Amalgamating Company shall, without any further act or deed, be and the same shall stand transferred to and vested in or deemed to have been transferred to or vested in the Amalgamated Company on a going concern, pursuant to the provisions of Section 230 to 232 and other applicable provisions of the Companies Act, 2013 and also in accordance with section 2(1B) of the Income Tax Act, 1961, without any further act or deed, as per the provisions contained herein and in this Scheme.

4.1 All immovable properties i.e. land together with the buildings and structures standing thereon (whether freehold, leasehold, leave and licensed, right of way, tenancies or otherwise) of the Amalgamating Company and all documents (including panchnamas, declarations, receipts) of title, rights and easements in relation thereto and all rights, covenants, continuing rights, title and interest in connection with the said immovable properties;

4.2 All assets, as are movable in nature of the Amalgamating Company, whether present or future or contingent, tangible or intangible, in possession or reversion, corporeal or incorporeal (including plant and machinery, furniture, fixtures, office equipment, communication facilities, installations, vehicles), actionable claims, earnest monies and sundry debtors, financial assets, outstanding loans and advances, recoverable in cash or in kind or for value to be received, provisions, receivables, funds, cash and bank balances and deposits including accrued interest thereto with Government, semi-Government, local and other authorities and bodies, banks, customers and other persons, the benefits of any bank guarantees, performance guarantees;

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4.3 All the investments, including but not limited to the investment in subsidiaries companies, joint venture companies, associate companies, partnership firms or investments of any other nature, of the Amalgamating Company.

4.4 All statutory licenses and approvals, including but not limited to, permissions, clearances, incentives, consents and authorization orders, and all other business certifications and all other registration certificates issued to the Amalgamating Company under the Applicable Law(s).

4.5 All the liabilities, obligations including the charges or encumbrances on assets / undertaking, guarantees given, of the Amalgamating Company, shall, without any further act or deed, be and stand transferred, to the Amalgamated Company, pursuant to the applicable provisions of the said Act, so as to become as from the Appointed Date, the debts, liabilities, duties and obligations of the Amalgamated Company. The consent of any third party or other person who is a party to any contract or arrangement by virtue of which debts, liabilities, duties and obligations liabilities have arisen, in order to give effect to the provisions of this Clause & Scheme. Provided however that, this shall not mean or result into enhancing the security for any loan, deposit or obligation created by the Amalgamated Company. The Amalgamated Company shall not be obliged to create any further or additional security therefor.

5. UPON COMING INTO EFFECT OF THE SCHEME

5.1 With effect from the Effective date and until such time the name of the Amalgamated Company is replaced in the relevant statutory/Government records, registers and contracts related to the assets and liabilities of the Amalgamated Company, the Amalgamated Company shall be entitled to raise invoices in the name of the Amalgamating Company and utilize the name of the Amalgamating Company as the division of the Amalgamated Company. Until such time, any amounts received by the Amalgamating Company after the Effective Date, shall be deemed to be held in trust

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on behalf of the Amalgamated Company. Thereafter, all such sums shall be remitted by the Amalgamating Company to the Amalgamated Company.

5.2 All cheques and negotiable instruments, payments orders received in the name of the Amalgamating Company after the Effective Date, shall be accepted by the bankers of the Amalgamated Company and credited to the account of the Amalgamated Company. Similarly, bankers of the Amalgamated Company shall honour cheques issued by the Amalgamating Company for payment after the Effective Date.

5.3 With effect from the Effective date and until such time the title, rights, interest in connection with all the immovable properties (land together with the buildings and structures standing thereon (whether freehold, leasehold, leave and licensed, right of way, tenancies or otherwise) in the names of the Amalgamating Company, is transferred in the name of Amalgamated Company, the Amalgamated Company shall deem to hold such title, rights, interest in immovable properties in trust on behalf in name of the Amalgamating Company.

5.4 With effect from the Effective date and until such time all statutory licenses and approvals, including but not limited to, permissions, clearances, incentives, consents and authorization orders, and all other business certifications and all other registration certificates issued to the Amalgamating Company under the Applicable Law(s) are transferred to Amalgamated Company, the Amalgamated Company shall deem to hold in trust such statutory licenses and approvals in on behalf of the Amalgamating Company.

5.5 The Amalgamated Company, at any time after the coming into effect of this Scheme, may execute deeds of confirmation in favour of any party to any contract or arrangement or memorandum of understanding to which the Amalgamating Company is a party or any writings as may be necessary to be executed in order to give formal effect to the above provisions. The Amalgamated Company shall, under

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the provisions of this Scheme, be deemed to be authorized to execute any such writings in the name of the Amalgamating Company to carry out or perform all such formalities or compliance, referred to above on the part of the Amalgamated Company to be carried out or performed.

6. TAXES

6.1 All taxes (including but not limited to advance tax, tax deducted at source, minimum alternate tax, any tax credits including Minimum Alternate Tax ("MAT") credit, taxes withheld/paid in a foreign country, Goods and Services Tax ("GST"), etc.) payable by or refundable to the Amalgamating Company, including all or any refunds or claims shall be treated as the tax liability or refunds / claims, etc., as the case may be, of the Amalgamated Company, and any tax incentives, benefits (including claims for unabsorbed tax depreciation, unabsorbed tax loses, unabsorbed book depreciation and unabsorbed book loss) advantages, privileges, exemptions, benefits, credits, tax holidays, remissions, reductions, etc., as would have been available to the Amalgamating Company, shall upon the Scheme being effective, be available to the Amalgamated Company.

6.2 Upon the Scheme being effective, the Amalgamated Company shall be entitled to claim refunds or credits, including input tax credit, with respect to taxes paid by, for, or on behalf of, the Amalgamating Company, under Applicable Law(s), including income tax (including tax losses), Minimum Alternate Tax ("MAT"), GST, CENVAT or any other tax, whether or not arising due to any *inter se* transaction, even if the prescribed time limits for claiming such refunds or credits have lapsed.

6.3 Upon the coming into effect of the Scheme, all tax compliances under any tax laws by the Amalgamating Company on or after Appointed Date shall be deemed to be made by the Amalgamated Company.

6.4 Upon the Scheme being effective, any advance tax, self-assessment tax, minimum alternate tax including unutilized MAT credit up to the Appointed Date and/or credit

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available for Tax Deducted at Source ("TDS") or vested with the Amalgamating Company, including any taxes paid and taxes deducted at source and deposited by the Amalgamated Company on inter se transactions during the period between the Appointed Date and the Effective Date shall be treated as advance tax paid by the Amalgamated Company and shall be available to the Amalgamated Company for set-off against its liability under the Income-tax Act, 1961 and any excess tax so paid shall be eligible for refund together with interest. Any TDS certificates issued by the Amalgamated Company to, or for the benefit of, the Amalgamating Company under the Income-tax Act, 1961 with respect to the inter se transactions would be available to the Amalgamated Company to seek refund from the tax authorities in compliance with law. Further, TDS deposited, TDS certificates issued or TDS returns filed by the Amalgamating Company on transactions other than inter se transactions during the period between the Appointed Date and the Effective Date shall continue to hold good as if such TDS amounts were deposited, TDS certificates were issued and TDS returns were filed by the Amalgamated Company. Any TDS deducted by, or on behalf of, the Amalgamating Company on inter se transactions will be treated as advance tax deposited by the Amalgamated Company.

6.5 The Amalgamated Company is also expressly permitted to claim refunds, credits, including restoration of input credit, tax deduction in respect of nullifying of any transaction between the Amalgamating Company and the Amalgamated Company.

7. REVISION OF ACCOUNTS / RETURNS

7.1 It is hereby provided that upon the Scheme being effective, the Amalgamated Company is also expressly permitted to revise its financial accounts, income tax returns, withholding tax returns, GST return and any other statutory returns and filings under the tax laws, notwithstanding that the period of filing /revising such return may have lapsed to obtain TDS certificates, including TDS certificates relating to transactions between the Amalgamating Company and the Amalgamated

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Company , and to claim refunds, advance tax and withholding tax credits, etc., pursuant to the provision of this Scheme.

8. COMPLICANCE WITH SECTION 2(1B) OF THE INCOME-TAX ACT, 1961

The provisions of this Scheme as they relate to the amalgamation of the Amalgamating Company with and into the Amalgamated Company, have been drawn up to comply with the conditions relating to "Amalgamation" as specified under the tax laws, including section 2(1B) and other relevant sections of the Income Tax Act, 1961. If any terms or provisions of this Scheme are found to be or interpreted to be inconsistent with any of the said provisions at a later date, whether as a result of any amendment of law or any judicial or executive interpretation or for any other reason whatsoever, the aforesaid provisions of the tax laws shall prevail. This Scheme shall then stand modified to the extent determined necessary to comply with the said provisions. The power to make such amendments as may become necessary shall vest with the Board of Directors of the Amalgamating Company and the Amalgamated Company, which power shall be exercised reasonably in the best interests of the companies concerned.

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9. BUSINESS AND PROPERTY IN TRUST AND CONDUCT OF BUSINESS OF THE AMALGAMATING COMPANY FOR THE AMALGAMATED COMPANY

With effect from the Appointed Date and up to and including the Effective Date:

9.1 The Amalgamating Company shall be carrying on and be deemed to have been carrying, on all business and activities and shall hold and stand possessed of and shall be deemed to hold, and stand possessed of all assets, rights, title, interest, authorities, contracts, investments and strategic decisions for and on account of, and in trust for the Amalgamated Company;

9.2 All income or profits accruing or arising to the Amalgamating Company, or all costs, charges, expenses or losses arising or incurred by it (including the effect of taxes, if any, thereon), shall, for all purposes, be treated as profits, income, costs, charges, expenses, taxes or losses, as the case may be, of the Amalgamated Company;

9.3 It is clarified that any advance tax paid / TDS credits / TDS certificates received by the Amalgamating Company, shall be deemed to be the advance tax paid by / TDS credit / TDS certificate of the Amalgamated Company.

9.4 All assets howsoever acquired by the Amalgamating Company for carrying on its business, operations or activities and the liabilities relating thereto shall be deemed to have been acquired and are also contracted for and on behalf of the Amalgamated Company.

9.5 The Amalgamating Company shall also be entitled, pending sanction of the Scheme, to apply to the Central Government, State Government, and all other agencies, department and statutory authorities concerned, wherever necessary, for such consents, approvals and sanctions which Amalgamated Company may require including the registration, approvals, exemptions, relieves, etc., as may be required / granted under any law for the time being in force for carrying on business of the Amalgamated Company.

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9.6 Without prejudice to the above, the Amalgamating Company from the date of filing this Scheme with the NCLT up to and including the Effective Date, shall not make any change in its capital structure, whether by way of increase (by issue of equity shares on a rights basis, bonus shares or otherwise) decrease, reduction, reclassification, sub-division or consolidation, reorganization, or in any other manner except under any of the following circumstances:

(i) By mutual consent of the respective Board of Directors of the Amalgamating Company and the Amalgamated Company; or

(ii) By way of any obligation already subsisting as on the date of filing this Scheme with the NCLT

9.7 The transfer of assets, properties, liabilities or Undertaking(s) and the continuance of proceedings by or against the Amalgamating Company, shall not affect any transaction or proceedings already concluded by the Amalgamating Company on or after the Appointed Date, to the end and intent that the Amalgamated Company accepts and adopts all acts, deeds things done and executed by the Amalgamating Company in regard thereto, as done executed by the Amalgamated Company on behalf of itself.

9.8 The Amalgamating Company undertakes that it will preserve and carry on the business with diligence and utmost business prudence and agrees that it will not, alienate, charge, mortgage or encumber or otherwise deal with or dispose of any assets or any part thereof or recruit new employees (in each case except in the ordinary course of business) or undertake substantial expansion or change the general character of the business; and

9.9 The Amalgamating Company and/or the Amalgamated Company shall be entitled, pending sanction of the Scheme, to apply to the Central/State Government(s), regulatory/local/administrative bodies and all other agencies, departments and authorities concerned, as are necessary under any Applicable Law for such consents,

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approvals and sanctions which the Amalgamated Company may require, in order to carry on the business of the Amalgamating Company.

10. CONTRACTS, DEEDS, BONDS AND OTHER INSTRUMENTS

10.1 Subject to the other provisions contained in the Scheme, all contracts, deeds, bonds, debentures, agreements and other instruments of whatever nature to which the Amalgamating Company is a party, subsisting or having effect immediately before the Effective Date shall remain in full force and effect against or in favour of the Amalgamated Company, as the case may be, and may be enforced as fully and as effectually as if, instead of the Amalgamating Company, the Amalgamated Company had been a party thereto.

10.2 It is clarified that in case of any such instruments including contracts, deeds, bonds, debentures etc., wherever required, shall amend or modify such instrument etc., as may be appropriate, by appending, attaching or affixing thereto such addendum, stickers, papers, supplementary modification deeds etc. with or without affixing the Common Seal of the Company, to denote and signify the Amalgamated Company as a party thereto stepping instead and in place of the Amalgamating Company. Further, the Amalgamated Company shall be deemed to be authorized to execute any such deeds, writings or confirmations on behalf of the Amalgamating Company and to implement or carry out all formalities required on the part of the Amalgamating Company to give effect to the provisions of this Scheme.

11. LEGAL PROCEEDINGS

If any suit, writ petition, appeal, revision or claims or action before any statutory or quasi-judicial authority or tribunal other proceedings of whatever nature(hereinafter called "the Proceedings") by or against the Amalgamating Company be pending, the same shall not abate, be discontinued or be in any way prejudicially affected by reason of the amalgamation of the Amalgamating Company or of anything contained in the Scheme, but the Proceedings may be continued, prosecuted and enforced by or against the Amalgamated Company in the

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same manner and to the same extent, as it would be or might have been continued, prosecuted and enforced by or against the Amalgamating Company, as if the Scheme had not been made. On and from the Effective Date, the Amalgamated Company shall and may initiate any legal proceedings for and on behalf of the Amalgamating Company.

12. STAFF, WORKMEN AND EMPLOYEES OF THE AMALGAMATING COMPANY

All the staff, workmen and other employees in the service of the Amalgamating Company immediately before the amalgamation under the Scheme, shall become the staff, workmen and employees of the Amalgamated Company, on the basis that:

12.1 Their service shall be continuous and shall not be interrupted by reason of the amalgamation;

12.2 The terms and conditions of service applicable to the said staff, workmen or employees after such amalgamation shall not in any way be less favorable to them than those Applicable to them immediately before the amalgamation; and

12.3 It is expressly provided that as far as Provident Fund, Gratuity Fund, Superannuation Fund or any other Fund created or existing for the benefit of the staff, workmen and other employees of the Amalgamating Company are concerned, upon the Scheme becoming effective, the Amalgamated Company shall stand substituted for the Amalgamating Company for all purposes whatsoever related to the administration or operation of such Funds or in relation to the obligation to make contributions to the said Funds in accordance with provisions of such Funds as per the terms provided in the respective Trust Deeds. It is the aim and intent that all the rights, duties, powers and obligations of the Amalgamating Company in relation to such Funds shall become those of the Amalgamated Company and all the rights, duties and benefits of the employees of the Amalgamating Company under such Funds and Trusts shall be protected. It is clarified that the services of the employees of the Amalgamating Company will also be treated as having been continuous for the purpose of the aforesaid Funds or provisions.

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13. CONSIDERATION AND ACCOUNTING TREATMENT

13.1 Upon the Scheme being effective, in consideration of the amalgamation of and vesting of GIPL in HSAPL and in terms of the Scheme, HSAPL shall, without any further application, act, instrument or deed, issue and allot to the shareholders of GIPL or (his /her/its legal heirs, executors or administrators or, as the case may be, successors), whose names are registered in the Register of Members of GIPL, as on the Record Date, in following ratio **("Share Exchange Ratio")**

i. 1 equity share of face value of Rs. 10 (Rupees ten only) each credited as fully paid up share of HSAPL to the equity shareholders of GIPL for every 1 (one) equity share of the face value of Rs. 10 (Rupee ten only) each fully paid up and held by such shareholders in GIPL whose names are recorded in the Register of Members of GIPL as on record date.

ii. 1 Optionally Convertible Preference Share (OCPS) of face value of Rs. 10 (Rupees ten only) each credited as fully paid up shares of HSAPL to the preference shareholders of GIPL for every 1 (one) Optionally Convertible Preference Share (OCPS) of the face value of Rs. 10 (Rupee ten only) each fully paid up and held by such shareholders in GIPL whose names are recorded in the Register of Members of GIPL as on record date at the terms not less favorable than the terms in GIPL. In absence of conversion of OCPS into equity shares within 3 (three) months of allotment, such shares will become Redeemable Preference Shares (RPS) with a right to carry additional dividend at 7% over the dividend declared on voting equity shares.

13.2 No fractional shares shall be issued by the Amalgamated Company and the fractional share entitlements, if any, arising out of such allotment, shall be rounded off to the nearest complete share.

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13.3 The new equity and preference shares issued and allotted by HSAPL in terms of the scheme shall be subject to the provisions of the memorandum and articles association of HSAPL and shall rank pari-passu in all respects.

13.4 The issue and allotment of new equity shares to the members of GIPL pursuant to clause 12.1 of this Scheme is an integral part of the scheme. The approval of this scheme by the members of HSAPL shall be deemed to be due compliance with all applicable provisions of the Companies Act 2013 including but not limited to Section 62(1) (c) of the Companies Act 2013 if applicable for the issue and allotment of new equity shares by HSAPL to the members of GIPL.

13.5 Where equity shares of HSAPL are to be allotted to heirs, executors or administrators or, as the case may be, to successors of deceased equity shareholders of GIPL, the concerned heirs, executors, administrators or successors shall be obliged to produce evidence of title, satisfactory to the Board of Directors of HSAPL.

13.6 In the event that HSAPL or GIPL restructures its equity share capital by way of share split / consolidation / issue of bonus shares / fresh allotment of securities or other similar action at any time before the record date during the pendency of the Scheme, the Share Exchange Ratio shall be adjusted appropriately and the same shall be approved by the Boards of both HSAPL and GIPL.

14. ACCOUNTING TREATMENT IN THE BOOKS OF AMALGAMATED COMPANY

14.1 Upon this Scheme becoming effective, the Amalgamated Company shall follow the method of accounting as prescribed for the "Pooling of Interest Method" under Appendix-C (Business Combination of companies under common control) of Ind AS 103 (Business Combination) as notified under the Companies (Indian Accounting Standard) Rules, 2015.

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14.2 The Amalgamated Company shall record the assets, liabilities and reserve of the Amalgamating Company as transferred to the Amalgamated Company pursuant to this Scheme, at their respective book values, as appearing in the books of the Amalgamating Company on the Appointed Date. No adjustments shall be made to reflect fair values, or recognize any new assets or liabilities. The only adjustments that are made are to harmonize accounting policies.

14.3 The identity of the reserves of the Amalgamating Company, shall be preserved and they shall appear in the financial statements of the Amalgamated Company in the same manner and form, in which they appeared in the financial statements of the Amalgamating Company prior to this Scheme becoming effective. Accordingly, if prior to this Scheme becoming effective there is any reserve in the financial statements of the Amalgamating Company available for distribution, whether as bonus shares or dividend or otherwise, the same would also be available in the financial statements of the Amalgamated Company for such distribution pursuant to this Scheme becoming effective.

14.4 All inter-company payables, receivables (including loans, advances etc.) and balances between the Amalgamating Company and the Amalgamated Company, shall cancelled and shall accordingly not record any of such payables, receivables and balances in their books.

14.5 The difference between the assets and liabilities of the Amalgamating Company to be transferred pursuant to this Scheme to the Amalgamated Company and Reserves & Surplus of the Amalgamating Company, after making the adjustment for the clause 13.4, shall be adjusted in accordance with Appendix-C of Ind AS-103(Business Combination of companies under common control) as notified under the Companies (Indian Accounting Standard) Rules, 2015.

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Part III: MISCELLANEOUS PROVISIONS AND CONDITIONALITY OF THE SCHEME

15. DISSOLUTION OF THE AMALGAMATING COMPANY

Upon this Scheme becoming effective, the Amalgamating Company shall be dissolved without winding up, pursuant to the provisions of Section 232 of the Act.

16. VALIDITY OF EXISTING RESOLUTIONS, ETC.

Upon the coming into effect of the Scheme, the resolutions of the Amalgamating Company as are considered necessary by the Board of Directors of the Amalgamated Company to be validly subsisting, be considered as resolutions of the Amalgamated Company. If any such resolutions have any monetary limits approved under the provisions of the Act or of any other applicable statutory provisions, then said limits, as are considered necessary by the Board of Directors of the Amalgamated Company, shall be added to the limits, if any, under the like resolutions passed by the Amalgamated Company.

17. CONSOLIDATION AND RESTRUCTURE OF SHARE CAPITAL AND AMENDMENT TO MEMORANDUM OF ASSOCIATION OF THE AMALGAMATED COMPANY

17.1 Consolidation of Authorized Share Capital

Upon the Scheme being effective, the authorized equity share capital of the Amalgamating Company being Rs. 35,94,10,000/- (Rupees Thirty Five Crore Ninety Four lakh Ten Thousand Only) towards equity share capital and Rs. 30,05,60,000 (Rupees Thirty Crore Five Lakh Sixty Thousand Only) towards Preference share capital shall be consolidated with the authorized share capital of the Amalgamated Company, without any further act or deed and without any further payment of the stamp duty or the registration fees.

17.2 Consequently, Clause V of the Memorandum of Association of the Amalgamated Company, shall be deleted in its entirety and be replaced as under:

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Clause V of Memorandum of Association: -

"The Authorized Share Capital of the Company is Rs.77,24,70,000 /- [Rupees Seventy Seven Crore Twenty Four Lakh Seventy Thousand only] divided into 4,71,91,000 Equity Shares of Rs. 10/- each, and 3,00,56,000 Preference Shares of Rs. 10/- each".

17.3 Under the accepted principle of *"Single Window Clearance"*, it is hereby provided that the above referred amendment of Memorandum of Association of the Amalgamated Company, viz. "Change in the Capital" Clause and its reclassification, shall become operative as an integral part of the Scheme. The consent of the shareholders of the Amalgamated Company to this Scheme, shall be deemed to be sufficient for the purposes of effecting the above amendment to the Memorandum of Association of the Amalgamated Company and no further resolution under Section 13 of the Act and any other applicable provisions of the Act and rules and regulations framed thereunder, would be required to be separately passed, nor shall the Amalgamated Company be required to pay any additional registration fees, stamp duty, etc.

18. CHANGE OF OBJECT CLAUSE OF AMALGAMATED COMPANY

With effect from the Appointed Date and upon the Scheme becoming effective, the Object Clause of Memorandum of Association of HSAPL be altered and amended by inserting following new sub - clause 2 immediately after the existing sub- clause 1 under Clause III(A) of the Memorandum of Association of HSAPL:

To carry on the business to construct, build, alter, acquire, convert, improve, design, erect, establish, equip, develop, dismantle, pull down, turn to account, furnish, level, decorate, fabricate, install, finish, repair, maintain, search, survey, examine, taste, inspect, locate, modify, owe, operate, protect, promote, provide, participate, reconstruct, grout, dig, excavate, pour, renovate, remodel, rebuild, undertake, contribute, assist, and to act as

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civil engineer, architectural engineer, Interior decorator, consultant, advisor, agent, broker, supervisor, administrate, developer, contractor, subcontractor, turnkey contractor, and manager of all types of constructions and developmental work in all its branches such as factories, houses, flats, apartments, housing towers, offices, shops, buildings, sheds, go-downs, structures, drainage and sewage works, land development, water distribution and filtration systems, aqueducts, stadium, hydraulic units, sanitary work, earth works, market yard, power supply works, power stations, hotels, holiday resorts, shopping cum residential complex, hospitals, multistory, colonies, shopping complexes, industrial park, estates, super market, mall, housing projects, amusement parks, farm houses, club house, and other similar works.

19. APPLICATIONS TO THE NATIONAL COMPANY LAW TRIBUNAL

The Companies shall, with reasonable dispatch, make joint petitions to the National Company Law Tribunal at Ahmedabad, pursuant to Sections 230 to 232 read with other applicable provisions of the Companies Act, 2013, as may be applicable, from time to time, for holding/dispensing with the meetings of the shareholders and/or creditors of the Companies and obtaining one or more orders sanctioning this Scheme and carrying this Scheme into effect.

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20. MODIFICATIONS/AMENDMENTS TO THE SCHEME

20.1 The Board of Directors of the Companies, may from time to time, assent on behalf of all persons concerned, including the shareholders, to any modifications or amendments or additions to the Scheme or to any conditions or limitations, which either the Board of Directors of the Companies may deem fit or which the Tribunal and/or any competent Authority, if any, under the law may deem fit, to approve of or impose and which the Board of Directors of the Companies may in their discretion, deem fit, and to resolve all doubts or difficulties that may arise in carrying out and implementing this Scheme and to do all acts, instruments, deeds, matters and thing necessary or to review position relating to the satisfaction of the conditions of this Scheme and if necessary, to waive any of those (to the extent permissible under law), for bring the Scheme into effect. In the event of any of the conditions that may be imposed by the Tribunal or other authorities which the Companies may find unacceptable for any reason, whatsoever, then, the Companies are at liberty to withdraw the Scheme. The aforesaid powers of the Companies may be exercised by their respective Board of Directors, or a committee of the concerned Board of Directors, or any director authorized in that behalf by the concerned Board of Directors.

20.2 For the purpose of giving effect to the Scheme or to any modifications or amendments thereof, or additions thereto, the delegate(s) of the Companies may give and hereby authorized to determine and give all such directions as are necessary including directions for settling or removing any question of doubt or difficulty that may arise and such determination or directions, as the case may be, shall be binding on all parties in the same manner as if the same were specifically incorporated in this Scheme.

20.3 If any terms or provisions of this Scheme are found to be or interpreted to be inconsistent with any of the Applicable Law(s) prevailing in India at a later date,

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whether as a result of any amendment of law or any judicial or executive interpretation or for any other reason whatsoever, the provisions of the Applicable Law(s)shall prevail. This Scheme shall then stand modified to the extent determined necessary to comply with the said laws. The power to make such amendments as may become necessary shall vest with the Board of Directors of the Amalgamating Company and the Amalgamated Company, which power shall be exercised reasonably in the best interests of the companies concerned.

20.4 Notwithstanding Clause 20.1, 20.2 and 20.3 above, the Companies (acting through their respective Board of Directors), shall be at liberty to withdraw or modify the Scheme for the reason of any condition or alteration imposed by the Tribunal or any other Governmental/regulatory authority, not being acceptable to them.

21. CONDITIONALITY OF THE SCHEME

The effectiveness of the Scheme is conditional upon and subject to:

21.1 The Scheme being approved by the respective requisite majorities of the various classes of Shareholders and creditors of the Companies, as required under the Act.

21.2 The sanction of the Tribunal under Section 230 to 232 of the said Act, whether with or without any modifications and amendments as the Tribunal may deem fit, in favor of the Companies and to the necessary Orders under Section 232 of the said Act, being obtained.

21.3 Certified copies of the Orders of the Tribunal being filed by the Companies with the Registrar of Companies having jurisdiction over each of such Companies.

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22. COST, CHARGES AND EXPENSES

All costs, charges, taxes including duties, levies and all other expenses, if any, arising out of/or incurred in securing approvals and sanctions for the Scheme and matters incidental thereto, shall be borne and paid by the Amalgamated Company.

23. APPROVALS / SANCTIONS NOT FORTHCOMING

In the event any of the approvals and sanctions as mentioned under clause 19 of the Scheme are not obtained, completed or forthcoming, the Scheme shall stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as in contemplated hereunder, or as to any right, liability or obligation which has arisen and accrued pursuant thereto and which shall be preserved or worked out as specifically provided in the Scheme or as may otherwise arise in law. In such event, the Board of Directors of the respective Companies, shall be entitled to withdraw this Scheme prior to the Effective Date.

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ANNEXURE - 'B"

GAJANAND INFRACON PRIVATE LIMITED

REGD. OFFICE: G-908, 9TH FLOOR, TITANIUM CITY CENTRE, 100 FEET ANANDNAGAR ROAD, AHMEDABAD – 380015, GUJARAT
[CIN: U45201GJ2010PTC060759] • Email: info.gajanandinfracon@gmail.com

List of Assets of GAJANAND INFRACON PRIVATE LIMITED as on (the date of the order passed by the NCLT sanctioning the scheme) to be transferred to HN SAFAL AVIATION PRIVATE LIMITED, pursuant to the scheme sanctioned by the Hon'ble National Company Law Tribunal, Ahmedabad Bench.

Schedule

Part I

Particulars of Freehold Properties

(i) Land: Nil

(ii) Building:

Sr. No.	Type	Sq. Mt.	Address
1	Office	96.34	A-307, Solitaire, Nr. Divya Bhaskar Press, SG Highway, Makaraba - 380051
2	Office	34.65	G-908, Titanium City Center, 100 Ft. Road, Prahladnagar, Ahmedabad - 380015

Part II

Particulars of Leasehold Properties

(i) Land: Nil

(ii) Building: Nil

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Director/Authorised Signatory

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GAJANAND INFRACON PRIVATE LIMITED

REGD. OFFICE: G-908, 9TH FLOOR, TITANIUM CITY CENTRE, 100 FEET
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Part III

A. Particulars of Investment in Shares & Securities:

Sr. No.	Share & Securities Type	Company Name	No. Of Shares / Securities	Face Valu e	Current Value
1	Compulsory Convertible Debentures	HN Safal Aviation Pvt. Ltd.	3,00,00,000	10	30,00,00,000
2	Equity	HN Safal Aviation Pvt. Ltd.	1,12,50,000	10	11,25,00,000
3	0.01% OCNCPS	HN Safal Infra Developers Pvt. Ltd.	7,91,188	10	61,51,86,824
4	0.01% OCNCPS	HN Safal Infra Space Pvt. Ltd.	7,91,188	10	70,63,06,621
5	Equity	Candour Techtex Limited (Earlier Known as Chandni Textiles Engineering Industries Ltd.)	1,000	10	42,950
6	Equity	JSW Energy Ltd.	36,30,000	10	1,12,42,11,000

B. Particulars of Bank Accounts:

Sr. No.	Bank & Branch	Type of Account	Account No.
1	ICICI Bank, Ashram Road	Current	018905012700

C. Registration with Various Authorities under respective laws, Bodies etc. :

Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AADCG8052G
	TAN	-
SALES TAX DEPARTMENT		-
SERVICE TAX DEPARTMENT	S.T.REG.NO.	-
	INPUT SERVICE DISTRIBUTOR	
	REG.NO.	-

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EXCISE & CUSTOMS	DGFT IE CODE NO.	-
	BIN No.	-
EXCISE REGISTRATION NO.		-
MINISTRY OF INDUSTRIES GOVERNMENT OF INDIA		-
REGISTRAR OF COMPANY'S CIN NO.		U45201GJ2010PTC060759
SMALL SCALE INDUSTRIES REG.NO. (GUJARAT) DIC OFFICE		-
PF REGISTRATION NO.		-
ESI REGISTRATION		-
FACTORY LICENCE NO.		-
PROFESSIONAL TAX REGISTRATION NO.		-
LIC GROUP GRATUITY POLICY NO.		-
CONTRACTUAL LABOUR REGISTRATION NO.		-
Electric Connections	G-908, Titanium Office Torrent Customer ID. A-307, Solitaire Office, Torrent Customer ID.	100184073 100541970

D. VEHICLES: NIL

GAJANAND INFRACON PVT. LTD.

Director/Authorised Signatory

Signature of the Director of the company

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